

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1138
(Representatives Pyle, Schreiber-Beck, Warrey)
(Senators Axtman, Schaible)

AN ACT to amend and reenact section 21-03-11 of the North Dakota Century Code, relating to bonding elections.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Section 21-03-11 of the North Dakota Century Code is amended and reenacted as follows:

21-03-11. Elections - When and how called and held.

1. Upon or after the adoption of an initial resolution by the governing body, or at the first meeting of the governing body held after the filing of a petition and proposed initial resolution by the qualified electors as specified in subsection 2 of section 21-03-10, the governing body by resolution shall ~~provide for submitting~~submit the initial resolution to the qualified electors of the municipality ~~the question whether the initial resolution shall be approved for approval.~~
2. The date of the election ~~must be not~~may not be less than ~~twentysixty-four~~ days after the passage of the initial resolution by the governing body or ~~in the filing date~~ of a sufficient petition ~~therefor by the~~filed by the qualified electors of the municipality.
3. The governing body shall designate the date of the election, the polling hours, and polling place, which must be the same as for municipal elections ~~therein, and held within the municipality.~~ The governing body shall appoint an inspector, two judges, and two clerks of election for each polling place. In case of the absence of any election official, or the official's inability to act at the opening of the polls,
4. If an election official is absent or unable to serve as an election official when a polling place is open, the remaining election officials for the polling place shall appoint a qualified elector to fill the vacancy. The election must be conducted and the election returns ~~thereof~~must be made and canvassed ~~as in the case of~~in the same manner of elections of members of the governing body of the municipality.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1138.

House Vote: Yeas 90 Nays 0 Absent 4

Senate Vote: Yeas 44 Nays 2 Absent 1

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State